

WRITTEN REQUEST TO RESTRICT JAIL AND DETENTION CENTER RECORDS UNDER
O.C.G.A. SEC. 35-3-37(K)(2)

THIS IS A WRITTEN REQUEST TO A GOVERNMENT FACILITY. It is not a court filing; no court, prosecutor or court office receives it.

From: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

Mailing address: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia 31401-2214

Telephone: (912) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

To (the facility that booked you, at its records-unit intake route - confirm the destination with that facility before sending; intake routes vary and are never guessed):

Facility:

County or municipality where the facility is located:

.....

Postal destination or records-unit intake route confirmed with the facility:

.....

RE: REQUEST TO RESTRICT RECORDS UNDER O.C.G.A. Sec. 35-3-37(k)(2)

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, was booked at your facility, and criminal history record information for the offense identified below has been RESTRICTED pursuant to O.C.G.A. Sec. 35-3-37. Under Sec. 35-3-37(k)(2), I request that all records for that offense maintained by your facility be restricted. The statute gives the facility 30 days from this request to do so.

2. The booking and the restricted offense (copied from my records; nothing on these lines is written for me):

Date of arrest and booking at the facility:

.....

Offense whose criminal history record information has already been restricted under O.C.G.A. Sec. 35-3-37, worded as the record states it:

.....

.....

Date the record was restricted, as far as the record shows:

.....

Booking number at the facility, if known (the request is effective without it; add it if the facility asks):

.....

Case number of the offense in court, if there was one:

.....

3. Enclosed is proof that the offense is already restricted - my Georgia criminal history report showing the cycle as restricted, or the court order restricting the record - as the enclosure page describes.

4. Please restrict all records for this offense maintained by your facility, including booking records and any booking photograph, within 30 days as O.C.G.A. Sec. 35-3-37(k)(2) provides, and confirm to me in writing at the mailing address above.

DATE SIGNATURE

(You sign and date this request yourself, when you actually send it. Nothing on this page is signed or dated for you.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:track-only:GA:ga-jail-k2

PROOF OF RESTRICTION ENCLOSURE PAGE

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Prior restriction is the statutory precondition of this request: Sec. 35-3-37(k)(2) applies to an individual who HAS HAD criminal history record information restricted pursuant to Sec. 35-3-37. Enclose a COPY of one of the following with the request, and keep the original. This packet never receives, inspects or authenticates it.

OPTION ONE. Your own Georgia criminal history report showing the cycle for this offense as RESTRICTED. Obtainable from most Georgia sheriff's offices and police departments, or through the Georgia Crime Information Center.

OPTION TWO. A copy of the court order restricting the record, where the restriction was ordered by a court. Obtainable from the office of the court that entered the order.

IF THE OFFENSE HAS NOT IN FACT BEEN RESTRICTED, STOP. A restriction route comes first, and this request cannot help until it is done.

Route: obligation:track-only:GA:ga-jail-k2

PROCESS GUIDANCE

This packet is prepared for asking the Georgia jail or detention center that booked you to restrict its own records of an offense that has already been restricted under O.C.G.A. Sec. 35-3-37.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHY THIS STEP EXISTS. Restriction at the Georgia Crime Information Center and sealing at the court do not automatically reach the jail's own records. County jail booking records and booking photographs are a major real-world harm surface, and Sec. 35-3-37(k)(2) gives you a direct written request to the facility itself, with a 30-day compliance period.

SAY RESTRICT, NOT EXPUNGE. Georgia law uses two remedies: **RECORD RESTRICTION** (limiting who may see criminal history record information) and **SEALING** (closing the court's file). Neither destroys the record, and Georgia has not used the word expungement in this statute since 1 July 2013.

WHAT YOU DO, IN ORDER.

STEP ONE. Confirm the offense is already restricted - get your Georgia criminal history report, or the restricting order, per the enclosure page.

STEP TWO. Identify the facility that booked you and the county or municipality it belongs to.

STEP THREE. Contact the facility and ask two things: where a records-restriction request should be sent, and whether the facility publishes its own request form. **IF THE FACILITY HAS ITS OWN FORM, THAT FORM GOVERNS** and you use it instead of this letter.

STEP FOUR. On timing: the text of Sec. 35-3-37(k)(2) imposes no waiting period, but county prosecutor guidance describes sending the request 30 days after the record has been restricted - after the Sec. 35-3-37(k)(1) period for the center to notify the arresting agency has run. Both readings are stated here because the question is recorded as unresolved; if your restriction is very recent, waiting 30 days costs little and avoids the question.

STEP FIVE. Fill in every dotted blank, sign the request, enclose the proof of restriction, and send it. Certified mail is recommended so you have a record of the date - the facility's 30-day compliance period runs from the request.

STEP SIX. FOLLOW UP AT DAY 31 if you have no confirmation.

MONEY. No fee is identified for this request anywhere in the records this packet is built from.

WHAT THIS REQUEST NEVER REACHES. Private mugshot publishers and background-check vendors that already hold the data. Records of any entity that is not a county or municipal jail or detention center. Federal and out-of-state records.

A CAUTION THE LAW REQUIRES. A restriction or sealing may still be used to disqualify you from employment or office in the same manner as a first offender discharge under O.C.G.A. Sec. 42-8-63.1, and does not supersede disclosure required by federal law. Do not state that the record does not exist.

WHEN TO STOP AND GET HELP INSTEAD.

- The facility refuses the request or does not respond within 30 days. Follow up once at day 31, then take

the packet to a Georgia records-restriction desk.

- The offense has not in fact been restricted under Sec. 35-3-37 - a restriction route comes first.
- The records you are worried about are held by a private mugshot publisher or background-check vendor, which this route does not reach.

WHERE TO GO WHEN SELF-HELP STOPS. The records-restriction desks the Judicial Council of Georgia's Access to Justice resources name: Georgia Justice Project; the Cobb County Second Chance Desk; the Henry County Records Restriction Desk; and Middle Georgia Justice, The Desk.

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